

26TRCV01652 26TRCV01652

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Case Number: 26TRCV01652 Hearing Date: August 11, 2026 Dept: B

Moving Parties: Defendants Kaylee &

Haley Hospitality, LLC dba America's Best Inn Rancho Palos Verdes and Haley

Hospitality Enterprises, LLC

Responding

Party: Plaintiff Paul Lambros

(1)

Demurrer to FAC

(2)

Motion to Strike

The Court considered the moving, opposition, and reply papers.

RULING

See

below.

BACKGROUND

On May 7, 2026, plaintiff Paul Lambros filed a complaint against Kaylee & Haley Hospitality, LLC dba America's Best Inn Rancho Palos Verdes and Haley Hospitality Enterprises, LLC for (1) negligence, (2) tortious breach of implied warranty of habitability, (3) breach of the implied warranty of habitability, (4) private nuisance, (5) breach of contract, (6) breach of covenant of quiet enjoyment, (7) IIED, and (8) violation of the UCL.

On May 15, 2026, plaintiff filed a FAC.

LEGAL

AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747.

Strike

“The

court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” CCP §436(b).

CCP §431.10 states:

“(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the

complaint or cross-complaint.

(c) An

‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in Section 436.”

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Defendants demur to the second, third, fourth, fifth, sixth, and seventh causes of action on the ground that they fail to allege sufficient facts to constitute a cause of action and are uncertain.

The FAC alleges that plaintiffs were lawful tenants and occupants at a motel located at 29601 S. Western Avenue, Rancho Palos Verdes. FAC, ¶12. The property is known as “Americas Best Value Inn Rancho Palos Verdes.” Id., ¶4. During plaintiff’s tenancy, the property was unsafe, unsanitary, unhealthy, and uninhabitable and subject to the following substandard conditions: bed bug infestation. Id., ¶28. Defendants had actual and/or constructive notice of the defects yet failed to take timely or reasonable steps to abate and/or remedy the defects. Any fumigation attempts that were undertaken by defendants before plaintiffs took possession of the property were inadequate. Defendants failed to properly remediate and abate the defects at the property to save money and increase defendants’ cash flow and net income. Id., ¶29. From April 30, 2023 to May 10, 2023, plaintiff reserved a room at the property with an associate as they were there on business. On May 10, 2023, plaintiff woke up sore and “itchy” in his abdomen area, legs, and arms. He also saw small unidentified bugs crawling on the sheets. Id., ¶31. Plaintiff immediately went to the property manager and informed him about what he experienced. The property manager apologized and insured plaintiff that he would address the issue. Id., ¶32.

The FAC further alleges that on May 19, 2023 until May

21, 2023, plaintiff and his associate were back in town for another business meeting. This time, prior to checking in, he was assured he would be given a new clean room. Plaintiff woke up again this time covered in bed bugs crawling all over him. They left bites all over his body. He looked down to discover that the property bed sheets were crawling with bed bugs. Id., ¶33. Plaintiff spoke with his business associate who apparently endured a similar experience. Additionally, plaintiff saw an exterminator on the premises who shared that he was there to treat bedbugs. Id., ¶34.

Uncertainty

Defendants note that the FAC is uncertain to the extent that plaintiff alleges that he rented the property from June 11, 2023 to June 15, 2023 (at para. 21); that his stay ended on May 20, 2023 (para. 27); that he reserved a room for April 30, 2023 to May 10, 2023 (para. 21); and that he returned on May 19, 2023 to May 21, 2023 (para. 33).

The Court finds that the FAC is uncertain, as addressed more fully in the seventh cause of action.

Second cause of action for tortious breach of implied warranty of habitability

The FAC alleges that defendants were under a duty to maintain the property in habitable conditions throughout plaintiff's tenancy and that a dwelling is deemed uninhabitable if it substantially lacks any of the affirmative standard characteristics described in Civil Code §1941.1. FAC, ¶54.

The Court finds that the allegations are insufficient as Civil Code §1941.1 does not apply to motel rooms. See below.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Third cause of action for breach of the implied warranty of habitability

The elements for a breach of the implied warranty of habitability cause of action

are “existence of a material defective condition affecting the premises’ habitability, notice to the landlord of the condition within a reasonable time after the tenant’s discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.” *Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal. App. 4th 1281, 1297 (citation omitted).

“[T]here

is a warranty of habitability implied in residential leases in California.” *Id.* at 1296.

The Civil Code creates certain obligations arising from the “hiring of real property.” Civil Code §§1940-1954.1. While these obligations arise with respect to “all persons who hire dwelling units located within this state including tenants, lessees, boarders, lodgers, and others . . .” (Civil Code §1940(a)), the obligations do not necessarily arise with respect to those who maintain “[t]ransient occupancy in a hotel, motel, residence club, or other facility when the transient occupancy is or would be subject to tax under Section 7280 of the Revenue and Taxation Code.” Civil Code §1940(b)(1). “A hotel guest is not a resident but ‘a mere lodger, whose possessory rights and interests are vastly inferior to those of a tenant.’

Consequently, a hotel owner’s duty to maintain reasonably safe rooms is more akin to the duty to maintain safe common areas than is a landlord’s duty to maintain reasonably safe premises.” *Lawrence v. La Jolla Beach & Tennis Club, Inc.* (2014) 231 Cal.App.4th 11, 30.

The

Court finds that the allegations are insufficient because the implied warranty of habitability does not apply to motel guests.

Plaintiff alleges that he “entered into an agreement to rent the Property from approximately June 11, 2023 to June 15, 2023,” and describes the Property as a “Motel like dwelling” known as “Americas Best Value Inn Rancho Palos Verdes.” Civil Code section 1940(b)(1) exempts from the chapter transient occupancy in a motel or other facility when the transient occupancy is or would be subject to tax under Section 7280 of the Revenue and Taxation Code.

Revenue and Taxation Code section 7280 states that the legislative body of any city and/or county may levy a tax on the privilege of occupying rooms at a motel or other lodging unless the occupancy is for a period of more than 30 days. Thus, the complaint’s allegations show that plaintiff’s rental of a room at a motel-like dwelling for less than

30 days “would be” subject to tax under Revenue and Taxation Code 7280, and therefore plaintiff is excluded from the definition of “persons who hire dwelling units,” to whom the implied warranty of habitability applies.

The
demurer is SUSTAINED WITHOUT LEAVE TO AMEND.

Fourth cause of action for private
nuisance

To
establish an action for private nuisance, (1) the plaintiff must prove an interference with his use and enjoyment of his property; (2) the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, that is, that it causes the plaintiff to suffer substantial actual damage; and (3) the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. See *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal. App. 5th 248, 262-263.

The
Court finds that the allegations are insufficient that plaintiff has a possessory interest in the motel and thus cannot maintain a cause of action for private nuisance. “‘Guests in a hotel . . . are generally mere licensees and not tenants. They have only a personal contract, and acquire no interest in the realty.’” *Edwards v. Los Angeles* (1941) 48 Cal. App. 2d 62, 67 (citation omitted). “Although ‘any interest sufficient to be dignified as a property right’ will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger, or employee.” *Venuto v. Owens-Corning Fiberglas Corp.* (1971) 22 Cal. App. 3d 116, 125 (citation omitted).

The
demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Fifth cause of action for breach of
contract

“[T]he

elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal. 4th 811, 821 (citation omitted).

If a breach of contract claim "is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference." *Harris v. Rudin, Richman & Appel* (1999) 74 Cal. App. 4th 299, 307 (citation omitted).

The Court finds that the allegations are insufficient because plaintiff does not set forth the terms of the contract verbatim, plead its legal effect, or attach a copy of the written contract. Plaintiff does not allege whether the contract is written, oral, or implied in contract. Further, the FAC does not allege any express terms that defendants breached.

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Sixth cause of action for breach of covenant of quiet enjoyment

The covenant of quiet enjoyment protects "hirers" of real property, which does not include certain transient hotel guests. *Spinks v. Equity Residential Briarwood Apartments* (2009), 171 CalA.App.4th 1004, 1034-1035; see Civil Code §1940(b)(1).

The Court finds that the allegations are insufficient because although plaintiff alleges that he was a "tenant," the allegations reflect that he was a motel guest, which is excluded under Civil Code §1940. See above.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Seventh cause of action for IIED

The

tort of intentional infliction of emotional distress is comprised of three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe or extreme emotional distress; and (3) the plaintiff's injuries were actually and proximately caused by the defendant's outrageous conduct. *McMahon v. Craig* (2009) 176 Cal. App. 4th 222, 234. "In order to meet the first requirement of the tort, the alleged conduct . . . must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." *Id.* at 234-35. Whether conduct is sufficiently extreme and outrageous so as to be actionable may be determined as a matter of law. *Cochran v. Cochran* (1998) 65 Cal. App. 4th 488, 494. To avoid demurrer, the plaintiff must allege such acts with great specificity. *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal. App. 4th 144, 160-61. Mere indignities, insults, threats, annoyances, petty oppressions and the like are not enough. *Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1051.

The

Court finds that the allegations are insufficient to show extreme and outrageous conduct by defendants with the intention of causing, or reckless disregard of causing, emotional distress to plaintiff. Plaintiff's pleading is uncertain, but under either reading, his cause of action is insufficiently pled. Plaintiff alleges that he rented the property for four nights on one occasion in June 2023.

If Plaintiff stayed at the motel on only one occasion and informed management of bed bugs, there is no showing that defendant's conduct was directed at plaintiff. Alternatively, plaintiff subsequently alleges that he rented the property on two separate occasions about 10 days apart in May 2023. He informed management about bedbugs at the end of his first stay, then when he returned less than 10 days later, he alleges there was an exterminator on site to treat bedbugs. This undermines the allegation that defendants engaged in extreme and outrageous conduct with the intention of causing, or reckless disregard of the probability of causing, emotional distress to plaintiff.

The

demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Motion
to Strike

Defendants

request that the Court strike paras. 48, 62, 78, 79, 97, 104 and prayer for
punitive damages and paras. 49, 63, 71, 80, 89, 90, 98, 105, 114 and prayer for
attorney's fees.

The

motion is GRANTED. There are no
allegations that support attorney's fees based on statute or contract. There are no allegations that support
punitive damages.